

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2009-002460

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF PATRICIA L. LEWTER, LPC, LICENSE NUMBER 1097,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners ("the Board") and Patricia L. Lewter, LPC,
("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice professional counseling in the State of Colorado on or about December 1, 1994, and has been so licensed at all times relevant herein.
3. This Order is a full and final resolution of case number 2009-002460. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. In November of 2008, Respondent disclosed confidential information about her client(s) by submitting an affidavit to the Court without obtaining the appropriate releases or consent from her client(s).
 - b. In March of 2008, Respondent failed to document suspected abuse/neglect of a minor client.
5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated §§12-43-218, and 12-43-222(1) (g), C.R.S., which state as follows:



12-43-218. Disclosure of confidential communications. (1) A licensee, school psychologist, registrant, certificate holder, or unlicensed psychotherapist shall not disclose, without the consent of the client, any confidential communications made by the client, or advice given thereon, in the course of professional employment; nor shall a licensee's, school psychologist's, registrant's, certificate holder's, or unlicensed psychotherapist's employee or associate, whether clerical or professional, disclose any knowledge of said communications acquired in such capacity; nor shall any person who has participated in any therapy conducted under the supervision of a licensee, school psychologist, registrant, certificate holder, or unlicensed psychotherapy, including, but not limited to, group therapy sessions, disclose any knowledge gained during the course of such therapy without the consent of the person to whom the knowledge relates.

12-43-222. Prohibited activities – related provisions. (1) A person licensed, registered, certified, or regulated under part 3, 4, 5, 6, 7, or 8 of this article is in violation of this article if such person:

(g) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which such person practices. A certified copy of a malpractice judgment of a court of competent jurisdiction shall be conclusive evidence of such act or omission, but evidence of such act or omission shall not be limited to a malpractice judgment.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanctions that the Board believes is necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's license to practice professional counseling in the State of Colorado is hereby placed on probation for one (1) year commencing from the effective date of this Order or the date Respondent's practice monitor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order. If at any time Respondent is not in compliance with the terms and restrictions of probation, including having a practice monitor in place, Respondent shall cease the practice of professional counseling.

8. The period of probation is tolled during any time that Respondent is not practicing professional counseling / psychotherapy in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing professional counseling/ psychotherapy in the State of Colorado in accordance with this Order.

9. Respondent shall report to the Board if she discontinues the practice of professional counseling or if Respondent is not practicing professional counseling at the time this Order is executed. Respondent shall notify the Board upon resuming the practice of professional counseling.

10. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing professional counseling in the State of Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

11. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

PRACTICE MONITOR

12. During the first six (6) months of Respondent's term of probation, Respondent's practice shall be monitored by a practice monitor. Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three proposed practice monitors for the Board's approval. Respondent shall include a Board-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The proposed practice monitors shall meet the following criteria:

a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado; and

b. It is recommended that the practice monitor have a minimum of five years experience and not have been subject to professional discipline; and

c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

13. Respondent must have a practice monitor approved by the Board within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a practice monitor is approved.

14. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint, and all responsive documents; read these documents; and understands and agrees to perform the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a

written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

15. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for at least one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once a month. During the practice monitoring sessions, Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

16. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All remaining reports shall be submitted on the fifth day of each month- for a total of 6 reports.

17. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

18. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, and/or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. At that time, the Board will make the determination as to whether or not Respondent is able to practice with reasonable skill and safety and whether emergency action should be taken under § 24-4-104 .

19. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

20. Either Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Board in accordance with this Order. If Respondent does not have another practice monitor in place before the termination date, Respondent shall cease the practice of professional counseling until she has another Board-approved practice monitor in place.



CONTINUING EDUCATION

21. During the period of probation, Respondent must successfully complete at least twenty (20) hours of Board-approved professional continuing education courses in the areas of legal/ethical issues, confidentiality, and record-keeping. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is mailed to the Board.

EARLY TERMINATION

22. After successful completion of no less than six (6) months of practice monitoring (including all 6 reports received and approved by the board) and all twenty (20) hours of continuing education courses, Respondent may petition the Board for early termination of probation. The parties agree that the Board's decision regarding such a petition shall be made at the sole discretion of the Board. Respondent is waiving the right to appeal the Board decision on this issue.

TERMS AND CONDITIONS

23. Respondent will strictly observe the prohibitions set forth in §12-43-222(1), C.R.S., of the Mental Health Practice Act, and will ensure that she practices in accordance with the generally accepted standards of practice.

24. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

25. All expenses incurred or associated with the practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order shall be the sole responsibility of Respondent and not the Board.

26. During the pendency of this Order, Respondent agrees that she will provide permission to and allow her practice monitor to provide records and information obtained in the normal course of practice monitoring to the Board if the practice monitor determines that Respondent is not practicing professional counseling in accordance with generally accepted standards of practice and/or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care. As part of this Order, Respondent expressly waives her right to maintain confidentiality of records or information provided to the practice monitor in the normal course of practice monitoring if the practice monitor determines that she is not practicing professional counseling in accordance with generally accepted standards of practice and/or has a condition that renders her unable to treat clients with skill and safety or that may endanger the health or safety of persons under her care.



27. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.
28. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.
29. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.
30. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.
31. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.
32. Respondent shall obey all municipal, state and federal laws while this Order is in effect.
33. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.
34. This Order shall become effective when accepted and signed on behalf of the Board.
35. This Order shall be admissible as evidence at any hearing held before the Board.
36. This Order shall be a public record in the custody of the Board.



RESPONDENT


PATRICIA L. LEWTER, LPC,
License No. 1097

Dated:

8-26-2011

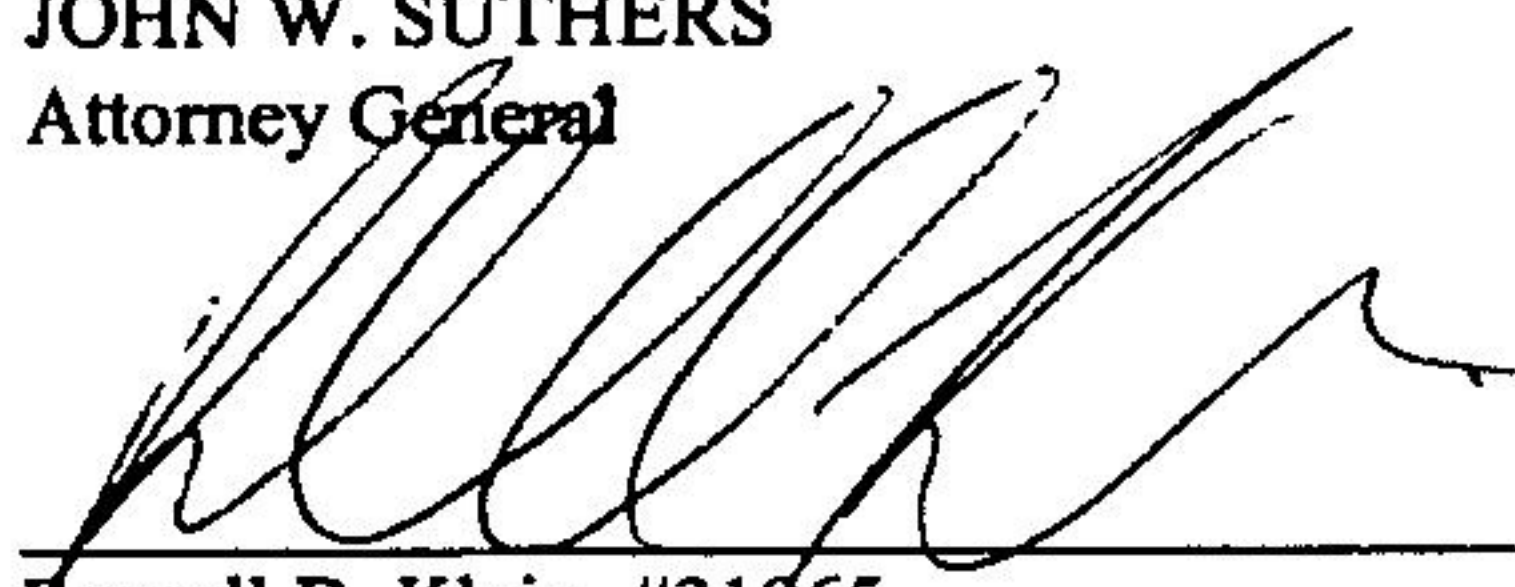
**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**


Ronne Hines
Program Director

Effective Date: This 18th day of
September, 2011.

APPROVED AS TO FORM:

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